

ELIZABETH II



1972 CHAPTER xxxi

An Act to confer further powers upon the mayor, aldermen and burgesses of the county borough of Derby; to make further provision with regard to the health, local government, welfare, improvement and finances of the borough; and for other purposes.

[27th July 1972]

WHEREAS—

(1) The borough of Derby (hereinafter referred to as “the borough”) is a county borough under the management and local government of the mayor, aldermen and burgesses of the borough (hereinafter referred to as “the Corporation”):

(2) It is expedient that further and better provision should be made with reference to lands and streets and the health, local government, welfare, improvement and finances of the borough and that the powers of the Corporation in regard thereto should be enlarged and extended as in this Act provided:

(3) It is expedient that the other provisions contained in this Act be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51.

(5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short and
collective
titles.

1.—(1) This Act may be cited as the Derby Corporation Act 1972.

(2) The Derby Corporation Acts 1825 to 1969 and this Act may be jointly cited as the Derby Corporation Acts 1825 to 1972.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Streets and buildings.

Part IV.—Public health.

Part V.—Parks, burial grounds and other municipal property.

Part VI.—Hackney carriages, etc.

Part VII.—Finance.

Part VIII.—Miscellaneous.

Part IX.—General.

Interpretation.

3.—(1) In this Act the several words and expressions (other than those defined in subsection (2) of this section) to which meanings are assigned by sections 90 and 343 of the Act of 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act, unless otherwise expressly provided or unless the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

“ the Act of 1933 ” means the Local Government Act 1933;

- PART I
—cont.
- “ the Act of 1936 ” means the Public Health Act 1936; 1936 c. 49.
- “ the Act of 1957 ” means the Housing Act 1957; 1957 c. 56.
- “ the Act of 1959 ” means the Highways Act 1959; 1959 c. 25.
- “ apparatus ” means mains, pipes or other apparatus, and electric lines and works (as respectively defined in the Electric Lighting Act 1882) and telegraphic lines (as defined in the Telegraph Act 1878) belonging to, or maintained by statutory undertakers and includes any works constructed for the lodging therein of apparatus; 1882 c. 56.
1878 c. 76.
- “ the appointed day ” has the meaning assigned to that expression by section 66 (The appointed day) of this Act;
- “ the borough ” means the county borough of Derby;
- “ building regulations ” has the same meaning as in section 4 of the Public Health Act 1961; 1961 c. 64.
- “ bulk refuse container ” means a container of not less than 1 cubic yard nominal capacity for refuse designed or adapted to be emptied by mechanical means into a refuse vehicle of the Corporation or to be removed by a vehicle of the Corporation for emptying;
- “ contravention ” includes a failure to comply and “ contravene ” shall be construed accordingly;
- “ the Corporation ” means the mayor, aldermen and burgesses of the borough acting by the council;
- “ the council ” means the council of the borough;
- “ enactment ” includes an enactment in this Act or in any general or local Act and any order, byelaw or regulation for the time being in force within the borough;
- “ financial year ” means a period of twelve months ending on 31st March;
- “ the general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough;
- “ land ” includes land covered by water and any interest in land or any easement or right in, to or over land;
- “ magistrates’ court ” has the same meaning as in the Magistrates’ Courts Act 1952; 1952 c. 55.
- “ Minister of the Crown ” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946; 1946 c. 31.

PART I
—cont.

1969 c. 48.

“ operational land ” in relation to statutory undertakers (except the Post Office) means land which is used for the purpose of the carrying on of their undertaking and land in which an interest is held for that purpose, not being land which in respect of its nature and situation is comparable rather with land in general than with land which is used, or in which interests are held, for the purpose of the carrying on of statutory undertakings and in relation to the Post Office has the same meaning as in paragraph 93 (4) of Schedule 4 to the Post Office Act 1969;

1960 c. 16.

“ public service vehicle ” has the same meaning as in section 117 of the Road Traffic Act 1960;

“ the railways board ” means the British Railways Board;

“ the revenues of the Corporation ” includes all such funds, rates, contributions and revenues receivable by the Corporation as are mentioned in section 218 of the Act of 1933;

“ statutory security ” means any security in which trustees are for the time being authorised by law to invest trust moneys or in which the Corporation are authorised to invest money forming part of the superannuation fund;

“ statutory undertakers ” means any body, company or person authorised by any enactment to supply electricity, gas or water, and includes the Post Office;

“ the town clerk ”, “ the medical officer ”, “ the surveyor ” and “ the treasurer ” mean respectively the town clerk, the medical officer of health, the surveyor, and the treasurer of the borough;

1967 c. 76.

“ traffic sign ” has the same meaning as in the Road Traffic Regulation Act 1967;

“ voluntary organisation ” means any organisation not carried on for profit not being an organisation carried on by a public authority, and “ voluntary ” shall be construed accordingly;

“ the water board ” means the South Derbyshire Water Board.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

PART II

LANDS

4. The power of the Corporation to purchase land by agreement shall include power to purchase land by agreement for the purpose of providing substituted sites or facilities for the owners and occupiers of land that may be acquired under any enactment. Provision of substituted sites.

5.—(1) The Corporation, by means of an order made by the Corporation and submitted to and confirmed by the confirming authority, may be authorised to create in favour of the Corporation in, over or under any land which under any enactment the Corporation may be authorised to acquire compulsorily any easement or other right in, over or under or in relation to such land which, in the opinion of the confirming authority, is essential to the full enjoyment or use of any buildings owned or occupied, or intended to be owned or occupied, by the Corporation for the purposes of any of their undertakings, powers or duties: Compulsory acquisition of easements.

Provided that the Corporation may not exercise the powers of this section in circumstances where they may be authorised to acquire such rights by virtue of section 47 of the Highways Act 1971.

1971 c. 41.

(2) The confirming authority shall not confirm any order under this section unless the confirming authority determine that the easement or right can be created without material detriment to the land in, over or under or in relation to which it is proposed to be created or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house.

(3) The Acquisition of Land (Authorisation Procedure) Act 1946 shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the said Act of 1946 and as if— 1946 c. 49.

(a) the expression “compulsory purchase of land” in the said Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section; and

(b) paragraphs 9 and 10 of Schedule 1 to the said Act of 1946 applied to the creation of such easement or right as is mentioned in the said subsection (1) whether it is created in, over or under any land to which either of those paragraphs relates or in, over or under any other land in which the person entitled to the benefit of the paragraph has an easement or other right which if it were land would be land to which the paragraph relates.

PART II
—cont.

1965 c. 56.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house, building or manufactory or of a park or garden belonging to a house within subsection (1) of section 8 of the Compulsory Purchase Act 1965.

(5) In this section the expression “confirming authority” means the authority having power to authorise the purchase compulsorily of the land for the enjoyment or use of which the easement or other right is required or which would have had such power if such land were not already owned by the Corporation.

Covenants or
restrictions
affecting
certain land.

1946 c. 50.

6. Where land owned by the Corporation (being land acquired by the Corporation to provide a site for a voluntary school) is conveyed by the Corporation to the trustees of a voluntary school in pursuance of the provisions of the Education Act 1946, any covenants or restrictions affecting the use of such land as aforesaid shall be enforceable against the trustees or governors or managers of the voluntary school only to the extent that they were enforceable against the Corporation prior to the conveyance referred to in this section.

Suspension of
restrictive
covenants.

7.—(1) If the Corporation—

- (a) acquire land by agreement; or
- (b) enter into an agreement to acquire land; or
- (c) have acquired land by agreement before the passing of this Act; or
- (d) appropriate (whether before or after the passing of this Act) land which has been previously acquired by agreement;

for a purpose for which they are for the time being or could under any enactment for the time being in force be authorised to acquire the land compulsorily and the land is affected by any restriction arising under covenant or otherwise (other than a restriction imposed by any enactment) as to the user thereof or the building thereon the council may, subject to the provisions of this section, by resolution suspend the operation of such restriction.

(2) The resolution shall describe by reference to a map the land to which it applies.

(3) The Corporation shall—

- (a) in three successive weeks publish in one or more local newspapers circulating in the borough a notice stating that the resolution has been passed, describing the land and naming a place within the borough where a copy of the resolution and map may be inspected and specifying the time, not being less than three months

from the date of the first publication of the notice, within which and the manner in which objections to the suspension of the restriction can be made;

(b) on or before the date of the first publication of the said notice—

(i) serve a copy of that notice by registered post or the recorded delivery service on every person who appears to them, after diligent inquiry, to be entitled to the benefit of the restriction to which the resolution relates; and

(ii) affix a copy or copies of that notice to some conspicuous object or objects on the land.

(4) Any person claiming to be entitled to the benefit of the restriction may object to the suspension of the restriction by sending notice of his objection and of the grounds thereof to the appropriate Minister and a copy thereof to the Corporation within the period specified in the notice.

(5) If any objection is duly made as aforesaid and is not withdrawn the resolution shall be of no effect unless and until it is confirmed by the appropriate Minister and before confirming the resolution the appropriate Minister shall cause a public local inquiry to be held into the proposed suspension of the restriction and after considering the report of the person who held the inquiry may confirm the resolution.

(6) (a) If no objection is duly made under subsection (4) of this section or if all objections so made are withdrawn the restriction shall be suspended on and after the date of the expiration of the period specified in the notice or the date of the withdrawal of the objection or, if more than one, the last objection or the date on which the Corporation acquire or appropriate the land, whichever is the latest.

(b) If objection is duly made as aforesaid and the appropriate Minister confirms the resolution the restriction shall be suspended on and after such date as the appropriate Minister shall determine not being earlier than the date on which the Corporation acquire or appropriate the land.

(7) If in the opinion of the Corporation there is doubt whether any such land as is mentioned in subsection (1) of this section is affected by any restriction to which that subsection relates or whether any such restriction is enforceable the Corporation may—

(a) in three successive weeks publish in one or more local newspapers circulating in the borough a notice describing the land and stating generally the effect of this subsection and of subsections (8) and (9) of this section and specifying the time not being less than three months from the date of the first publication of the notice

PART II
—cont.

within which and the manner in which any person claiming to be entitled to enforce a restriction against the use of the land may intimate such claim to the Corporation and shall produce to them his documents of title in support of his claim;

(b) on or before the date of the first publication of the notice referred to in paragraph (a) of this subsection—

(i) serve a copy of that notice by registered post or the recorded delivery service on every person who they consider after reasonable inquiry may reasonably be expected to claim to be entitled to the benefit of a restriction against the land; and

(ii) affix a copy or copies of that notice to some conspicuous object or objects on the land.

(8) If any person is entitled to the benefit of a restriction against the land but fails to comply with the requirements of such notice, the restriction shall, so far as concerns such person and his successors in title, be deemed to have been suspended under the foregoing provisions of this section, but without prejudice to any claim for compensation under subsection (9) of this section.

1925 c. 20.

(9) The Corporation shall pay to any person entitled to the benefit of any restriction suspended under the powers of this section compensation equal to such sum as that person would have been entitled to receive for the discharge of such restriction under section 84 of the Law of Property Act 1925, and the amount of such compensation shall be determined in case of dispute by the Lands Tribunal.

(10) Any restriction suspended under the powers of this section shall be unenforceable so long as the Corporation are the owners of the land affected by the restriction or if the Corporation convey the land to any body for any of the purposes of the Education Acts 1944 to 1971, and, if compensation is paid by the Corporation under subsection (9) of this section in respect of the suspension of a restriction relating to the building upon or use of land, that restriction shall remain unenforceable in respect of such building or use notwithstanding any subsequent conveyance or disposition of the land to any other person:

Provided that if such compensation is paid on the basis that the land may be used for a particular purpose, the restriction shall, after any subsequent conveyance or disposition of the land to a person otherwise than for any of the purposes of the Education Acts 1944 to 1971 remain unenforceable only so long as the land is used for that purpose.

(11) If the Corporation dispose of any land affected by the restriction suspended under the powers of this section they shall in two successive weeks publish notice thereof in one or more local newspapers circulating in the borough.

(12) Nothing in this section shall apply to any restriction for—

- (a) the protection of or for preventing interference with the use of or for securing access to operational land or apparatus of the railways board or any statutory undertakers;
- (b) the prevention of pollution of water which the water board are for the time being authorised to take;
- (c) the protection of or for preventing interference with the use of or for securing access to land used in the performance of their statutory functions or apparatus of the Trent River Authority;

contained in any deed, wayleave, agreement or other instrument.

(13) Nothing in this section shall apply to any restriction arising under a covenant granted to the National Trust for Places of Historic Interest or Natural Beauty restricting the development or use of land.

(14) In this section “the appropriate Minister” means the Minister of the Crown having power to authorise the compulsory purchase of the land for the purpose for which the Corporation have acquired or agreed to acquire or appropriate that land.

8. In respect of land acquired by the Corporation under any Disposal of enactment for the benefit, improvement or development of the land. borough, section 165 of the Act of 1933 shall have effect with the omission of the words “and which is not required for the purpose for which it was acquired or is being used”.

9. Notwithstanding anything in the Lands Clauses Consolidation Act 1845 or the Compulsory Purchase Act 1965, it shall be lawful for the High Court at any time not being less than twelve years after any sum has been paid by the Corporation into the Supreme Court in pursuance of section 76 of the said Act of 1845 or section 9 of the said Act of 1965 or paid by the Corporation into the Supreme Court by way of security in pursuance of section 85 of the said Act of 1845 or Schedule 3 to the said Act of 1965 to order upon application by the Corporation that the money so paid or the fund in which the sum shall have been invested together with the accumulations thereto shall be repaid or transferred to the Corporation:

Recovery of deposits under Lands Clauses Acts or Compulsory Purchase Act 1965.
1845 c. 18.
1965 c. 56.

Provided that upon the application of any person making claim to the money paid as aforesaid or any part thereof or to the lands in respect of which the same shall have been paid or any part of such lands or any interest in the same the High Court may order such money as has been repaid or transferred to the Corporation under the provisions of this section or any part thereof to be paid to the person making such claim and may make such other order in the premises as the High Court shall think fit.

PART II
—cont.

Entry on
land for
certain
purposes.

10.—(1) Whenever it becomes necessary for the Corporation or any of their officers, contractors or workmen to enter, examine or lay open any land for the purpose of making plans, surveying, measuring, taking levels or making trial holes in connection with a function (other than a function as highway authority) for which they are for the time being or could under any enactment for the time being in force be authorised to acquire or use land compulsorily, and the owner or occupier of such land refuses to permit the same to be entered upon, examined or laid open for the purposes aforesaid or any of them, the Corporation may, after notice to such owner or occupier, apply to a magistrates' court for an order under this section.

(2) If sufficient cause is shown for the application the court may make an order accordingly, and on such order being made the Corporation, or any of their officers, contractors or workmen, may at all reasonable times between the hours of nine in the forenoon and six in the afternoon enter, examine or lay open the land mentioned in such order for such of the said purposes as are therein specified without being subject to any action or molestation for so doing:

Provided that no entry shall be made or works commenced under this section unless at least twenty-eight days' notice of the intended entry and of the object thereof be given to the occupier of the land intended to be entered.

(3) The Corporation shall at their own expense make good and restore to its former condition any land laid open by them, or their officers, contractors or workmen, and shall make good, to the reasonable satisfaction of the owner or occupier of the land entered, all damage or loss sustained by him in consequence of such entry, examination or laying open, and any dispute as to the amount of damage or loss so sustained as aforesaid shall, in default of agreement, be assessed by the Lands Tribunal and the amount so assessed shall be recoverable in any court of competent jurisdiction.

(4) If any statutory undertakers refuse to permit any of their operational land, the railways board refuse to permit any land belonging to them and used for the purposes of their undertaking, or the Trent River Authority refuse to permit any lands used by them for any purpose in connection with any of their statutory functions or in which they hold an interest for any such purpose, to be entered upon, examined or laid open for any of the purposes mentioned in subsection (1) of this section, application under that subsection shall not be made to a magistrates' court but any question arising as to whether permission for any such land to be so entered upon, examined or laid open is unreasonably withheld shall be determined by a single arbitrator appointed in default of agreement by the President of the Institution of

Civil Engineers and if the arbitrator shall determine that such permission is unreasonably withheld, the Corporation shall have the like powers of entering, examining and laying open the said land for the purposes for which permission was refused and be under the same liabilities as under an order of the court made under subsection (2) of this section.

(5) Any person who, in compliance with the provisions of this section or an order made thereunder is admitted into a factory or workplace, discloses to any person any information obtained by him in the factory or workplace with regard to any manufacturing process or trade secret he shall, unless such disclosure was made in the performance of his duty, be liable to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

(6) Before making a trial hole in any land in exercise of the powers of this section the Corporation shall give to the statutory undertakers not less than fourteen days' notice specifying the situation of the land in which it is proposed to make the trial hole.

11.—(1) The Corporation may for the purpose of enabling them to perform any of their functions under—

(a) this Act;

(b) any enactment in force at the passing of this Act which authorises the Corporation to acquire land compulsorily and which does not contain power to require information as to ownership of premises;

(c) any enactment mentioned in Schedule 1 to this Act; and

(d) any local enactment in force at the passing of this Act which authorises the Corporation to serve notice upon the owner or occupier of lands or premises requiring the execution by such owner or occupier of works on such lands or premises or which authorises the Corporation to execute works on lands or premises within or outside the borough;

Power to
require
information
as to
ownership
of premises.

require—

(i) the occupier and any person having an interest in any premises within or outside the borough and any person who either directly or indirectly receives rent in respect of such premises, to state in writing the nature of his own interest therein and the name and address of any other person known to him as having an interest in those premises whether as freeholder, mortgagee, lessee or otherwise, or the name and address of any person known to him to receive either directly or indirectly the rent in respect of those premises; and

PART II
—cont.

- (ii) any person who has sold or otherwise disposed of, leased or let any premises within or outside the borough to state in writing the name and address of the person to whom he has sold or otherwise disposed of, leased or let those premises.

(2) Any person who, having been required by the Corporation in pursuance of this section to give to them any information, fails to give that information or knowingly makes any misstatement in respect thereof shall be liable to a fine not exceeding twenty pounds.

(3) For the purposes of this section the expression “interest” includes any legal estate or interest in the premises or in any rentcharge issuing out of those premises.

(4) The provisions of any of the enactments referred to in paragraph (c) of subsection (1) of this section which contain power to require information as to the ownership of premises shall cease to apply to the Corporation in so far as they relate to the same subject-matter as this section.

PART III

STREETS AND BUILDINGS

Trees, grass
verges and
gardens.

12.—(1) Subject to the provisions of this section the Corporation shall have power, in any street vested in them, or on any land acquired by them for the construction or improvement of any such street or for preventing the erection of buildings detrimental to the view from the street—

- (a) to plant trees, shrubs or other plants or place containers in which to grow trees, shrubs or other plants;
- (b) to attach containers for plants to posts or standards provided by the highway authority or, with the consent of the owner thereof, to any other posts or standards;
- (c) to lay out grass verges or gardens;
- (d) to provide guards or fences, and otherwise do anything expedient, for the maintenance or protection of such trees, shrubs or plants, containers, grass verges or gardens;
- (e) to cut down or remove any such tree, shrub or plant, to remove any such container, guard or fence and to abolish any such grass verge or garden or enlarge or diminish the area thereof;
- (f) by notice to prohibit persons from entering upon, or causing or permitting horses, cattle or vehicles to enter upon, any grass verge laid out under this section and maintained in an ornamental condition or mown, or any garden so laid out;

(g) by notice to prohibit the playing of any game on any such grass verge as aforesaid which is likely to cause damage thereto.

PART III
—cont.

(2) (a) Notice of the prohibitions contained in paragraph (f) of subsection (1) of this section shall be indicated by such traffic signs as may be authorised for the purpose by the Secretary of State in pursuance of his powers under sections 54 and 55 of the Road Traffic Regulation Act 1967.

1967 c. 76.

(b) Any such notice as is referred to in paragraph (f) or paragraph (g) of the foregoing subsection shall be conspicuously posted on, or in proximity to, the grass verge or garden to which it relates.

(3) If any person (except in a case of emergency) contravenes a notice so posted in pursuance of the said paragraph (f) or if any person contravenes a notice so posted in pursuance of the said paragraph (g) he shall be liable to a fine not exceeding twenty pounds.

(4) The powers conferred by this section shall not be exercised so as to hinder the reasonable use of the street by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises abutting on the street.

(5) Section 82 of the Act of 1959 shall cease to apply to highways vested in the Corporation or to any such land as is referred to in subsection (1) of this section; and anything done by the Corporation under that section or under section 1 of the Roads Improvement Act 1925 with respect to such highways or land before the passing of this Act shall be deemed to have been done under this section.

1925 c. 68.

(6) Nothing in this section shall affect the duty of the Corporation to provide a footway or grass or other margins under section 67 or section 70 of the Act of 1959.

(7) The Corporation may exercise the powers conferred by this section in a street being a trunk road with the consent of the Secretary of State notwithstanding that the street is not vested in the Corporation.

(8) (a) Where the Corporation carry out works under any enactment relating to private street works, they may, with the consent of the owners of premises fronting, adjoining or abutting on the part of the street in which the works are carried out, exercise the powers conferred by this section in that part; and the expenses incurred in so doing shall be deemed part of the expenses of carrying out the works.

(b) The reference in this subsection to the consent of the owners of the said premises is a reference to the consent of the majority

PART III
—cont.

of them where the rateable value of the premises owned by the persons consenting is greater than the rateable value of the rest of the said premises.

(9) In this section “verge” includes any land situated between two carriageways.

Prohibition
of vehicles on
grass verges,
etc.

13.—(1) Where any grass verge, garden or space is provided by the Corporation in pursuance of the Act of 1957 or some other enactment or by any other person in pursuance of arrangements made with the Corporation and maintained in an ornamental condition or mown, the Corporation may by notice prohibit persons from—

- (a) causing or permitting horses, cattle or vehicles to enter upon any such grass verge, garden or space; or
- (b) entering upon any such garden.

(2) (a) Notice of the prohibitions contained in subsection (1) of this section shall be indicated by such traffic signs as may be authorised for the purpose by the Secretary of State in pursuance of his powers under sections 54 and 55 of the Road Traffic Regulation Act 1967.

(b) Any such notice as is referred to in the foregoing subsection shall be conspicuously posted on, or in proximity to, the grass verge, garden or space to which it relates and if any person (except in a case of emergency) contravenes a notice so posted he shall be liable to a fine not exceeding twenty pounds.

(3) Before exercising their powers under subsection (1) of this section in relation to any grass verge, garden or space provided by any other person, the Corporation shall consult that other person.

(4) The powers of this section shall not be exercisable in relation to any grass verge, garden or space which forms part of a highway maintainable at the public expense.

Prohibition
of parking
of certain
vehicles.

14.—(1) On and after the appointed day a driver shall not in the borough leave unattended a specified vehicle otherwise than within an allocated area except for the purpose of dealing with an emergency affecting the said vehicle or his person or with a breakdown of or necessary repairs to the said vehicle.

(2) Any person who contravenes the provisions of the foregoing subsection shall be guilty of an offence and shall be liable to a fine not exceeding twenty pounds or, in the case of a second or subsequent conviction, to a fine not exceeding fifty pounds.

(3) The provisions of subsections (2) and (3) of section 85 of the Road Traffic Regulation Act 1967 shall apply to an offence under subsection (1) of this section as they apply to offences under subsection (1) of that section.

1967 c. 76.

(4) For the purposes of this section a person shall be deemed to be in attendance on a specified vehicle so long as he has the said vehicle under constant supervision and—

PART III
—cont.

“ allocated area ” means an area either—

(a) within an open yard on enclosed premises at which a specified vehicle is loaded or unloaded or other specified vehicles are from time to time loaded or unloaded provided that the consent of the occupier of the said premises has been obtained; or

(b) approved by the Corporation for a person to leave a specified vehicle;

“ corrosive substance ” has the same meaning as in the Corrosive Substances (Conveyance by Road) Regulations 1971;

“ flammable substance ” means any substance which is included in the Petroleum (Inflammable Liquids) Order 1971 or the Petroleum (Compressed Gases) Order 1930;

“ specified vehicle ” means a tank trailer, tank wagon or other open vehicle which contains any substance which is corrosive, toxic or flammable at the time the vehicle is left, and which is specially constructed or specially adapted wholly or mainly for the conveyance of more than 250 kilogrammes in weight of any such substance;

“ toxic substance ” means phenol, ammonia, chlorine, sodium cyanide, potassium cyanide or acetone cyanhydrin.

15.—(1) Subject to the provisions of this section the Corporation may affix to any buildings in the borough such traffic signs as may be required for the purposes of section 55 of the Road Traffic Regulation Act 1967:

Attachment
of traffic
signs.

1967 c. 76.

Provided that the Corporation shall not by virtue of this section affix any traffic sign to a building or structure forming part of premises occupied solely for residential use.

(2) The provisions of subsections (2) to (9) of section 45 of and Schedule 4 to the Public Health Act 1961, shall apply to any traffic signs affixed under subsection (1) of this section as if they were attachments affixed under subsection (1) of the said section 45 and the said provisions as so applied shall have effect with any necessary modifications including the substitution of “ the Corporation ” for “ a street lighting authority ” and the omission from subsection (9) of the definition of “ street lighting ”.

1961 c. 64.

PART III

—cont.

1961 c. 64.

(3) For the purposes of this section and the provisions of section 45 of, and Schedule 4 to, the Public Health Act 1961 applied by the foregoing subsection the expression “building” shall include a structure and the expression “structure” shall include a wall, fence or similar erection.

Securing of
unoccupied
houses under
Act of 1957.

16.—(1) Where the Corporation have under section 16 of the Act of 1957 accepted an undertaking that a house will not be used for a human habitation or where the Corporation have—

(a) by a closing order made under section 17, 18, 26 or 35 of the Act of 1957, ordered any house or building, or any part thereof, to be closed; or

(b) by a clearance order under section 44 of the Act of 1957, ordered any building, or any part thereof, to be vacated, and in such a case it appears to the Corporation that the building, or the part thereof (as the case may be), will not be, or is unlikely to be, demolished within six weeks from the date when, in pursuance of the order, the premises are vacated;

they may, if the premises are not effectively secured so as to prevent the entry into the premises, when unoccupied, of any person other than a person authorised by the owner or the Corporation, after giving to the owner not less than forty-eight hours' notice of their intention to do so, themselves do such things in relation to the house or building, or part thereof, as will so secure the premises against entry.

(2) Nothing in this section shall prejudice the powers of the Corporation to take steps to deal with any dangerous building under section 25 of the Public Health Act 1961.

(3) In this section—

“house” has the same meaning as in the Act of 1957;

“owner” includes any person deemed to be the person having control of the house for the purposes of Part II of that Act.

Expenses of
executing
demolition
orders.

17.—(1) Any expenses adjudged to be payable to the Corporation consequent upon the exercise of their powers under subsection (1) of section 23 or subsection (3) of section 44 of the Act of 1957 shall, until recovered, be a charge on the premises in respect of which the expenses were incurred and on all estates and interests therein.

1925 c. 20

(2) The Corporation shall for the purpose of enforcing a charge under this section have all the powers and remedies under the Law of Property Act 1925, and otherwise of mortgagees by deeds having powers of sale and lease, of accepting surrenders of leases and of appointing a receiver.

PART IV

PUBLIC HEALTH

18.—(1) The powers of the Corporation under subsection (3) of section 72 of the Act of 1936 shall extend to enable them to make byelaws prohibiting the deposit of any substance liable to cause burning in paper sacks provided for the reception of house refuse. Extension of sections 72 and 75 of Act of 1936.

(2) As from the date upon which the council resolve to operate a system of collection of house refuse by means of paper sacks within the borough or, as the case may be, in any part thereof, section 75 of the Act of 1936 shall have effect within the borough or, as the case may be, within that part, as if in subsection (1)—

(a) for the word “dustbins” there were substituted the words “stands or frames used in connection with paper sacks”;

(b) for the proviso there were substituted the following:—

“Provided that this subsection shall not entitle an authority to require the replacement of any dustbin in use on the date upon which the authority resolve to operate a system of collection of house refuse by means of paper sacks so long as it is of satisfactory material, size and construction and properly covered and in proper condition.”

(3) In its application to the borough, subsections (2) and (3) of the said section 75 shall have effect as if the expression “dustbin” included any stand or frame used in connection with paper sacks provided for the reception of house refuse.

(4) Nothing in subsection (3) of the said section 75 shall affect the power of the Corporation to provide paper sacks for the reception of house refuse where they have served notice under subsection (1) of the said section 75 as amended by subsection (2) of this section requiring the provision of a stand or frame, provided that no annual charge shall be made in respect of the paper sacks provided for the reception of house refuse.

(5) In its application to the borough where such stand or frame is provided by the Corporation any annual charge made under subsection (3) of the said section 75 shall be made in respect only of the stand or frame so provided.

(6) In its application to the borough subsection (3) of the said section 75 shall have effect as if after the word “thereof” there were inserted the words “or as respects any buildings therein”.

PART IV
—cont.

(7) In this and the next following section and in section 75 of the Act of 1936 as amended by this section “paper sacks” includes any receptacles for the reception of house refuse consisting of whatever material which may be detached from a stand or frame used in connection therewith.

Refuse
disposal.

19.—(1) Where plans of a building have been deposited with the Corporation in pursuance of building regulations the Corporation may reject the plans if they are not satisfied that they show that—

- (a) the method of storage of refuse together with the related facilities to be provided are adequate;
- (b) adequate means of access from a highway to the place of storage of the refuse so as to facilitate the removal of refuse to the Corporation’s refuse vehicles will be provided; and
- (c) adequate provision will be made for the installation of stands or frames for the purpose of supporting paper sacks provided for the reception of house refuse.

(2) If the Corporation reject the plans under the authority of this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

(3) Any question arising under this section between the Corporation and the person by or on whose behalf plans are deposited as to whether the accommodation for the storage of refuse or the means of access shown on the plans is adequate may on the application of that person be determined by a magistrates’ court:

Provided that no such application shall be entertained unless it is made before the proposed building has been substantially commenced.

Provision of
bulk refuse
containers by
Corporation.

20. The Corporation may at the request of the owner or occupier of any premises within the borough provide and maintain at such premises a bulk refuse container on such terms and conditions and at such monthly, quarterly or annual charge as may be agreed between such owner or occupier and the Corporation.

Maintenance
of and access
to bulk refuse
containers.

21.—(1) Where the owner or occupier of any premises within the borough provides a bulk refuse container, or where the Corporation at the request of the owner or occupier provide a bulk refuse container, the Corporation may by notice require him to provide and maintain to the satisfaction of the Corporation

a good and sufficient stand or base for the bulk refuse container, and to provide and maintain to the satisfaction of the Corporation such means of access from a highway to the bulk refuse container as are sufficient to allow the passage and to bear the weight, with a full bulk refuse container, of any trolley or other vehicle of the Corporation constructed to convey bulk refuse containers to and from refuse vehicles.

(2) A notice under the foregoing subsection may require the owner or occupier of the premises to execute such work and to make such provision in regard to the matters aforesaid as may be necessary.

(3) The provisions of section 290 of the Act of 1936 shall apply to notices given under this section as they apply to the notices mentioned in subsection (1) of that section and, in their application to notices given under this section, shall have effect as if the following paragraph were added to subsection (3) thereof:—

“(g) where the notice requires the owner or occupier of part of the premises in question to execute works for the benefit of the owner or occupier of any other part of the premises, that the owner or occupier of that other part should bear, or contribute towards, the expenses of executing the works required”;

and subsection (5) of the said section 290 shall have effect accordingly as if after the reference to “paragraph (f)” there were inserted the words “or paragraph (g)”.

22. The Corporation may, as respects any premises in the borough, provide and maintain such number of dustbins or other receptacles for the reception of trade refuse as they may consider necessary.

Power to
provide
dustbins for
trade refuse.

23.—(1) Where on an information laid by or on behalf of the Corporation a person is convicted of an offence against regulations made under section 13 of the Food and Drugs Act 1955 and the offence includes—

Closure of
insanitary
food
premises and
stalls.

(a) the carrying on of a food business at any insanitary premises or at any premises the condition, situation or construction of which is such that food is exposed to the risk of contamination; or

1955 c. 16.
(4 & 5 Eliz. 2.)

(b) the carrying on of a food business on, at or from an insanitary stall or on, at or from a stall which is so situated or constructed or is in such a condition that food is exposed to the risk of contamination;

PART IV
—cont.

then, if it has been proved that open food is stored, sold or offered or exposed for sale at the premises or on, at or from the stall and that by reason of the insanitary or defective condition of the structure or fittings or fixtures or equipment or infestation of vermin or accumulation of refuse the carrying on of a food business at those premises or on, at or from that stall, would be dangerous to health, the court may, on the application of the Corporation, whether or not it makes any other order, by order, prohibit the storage, sale or offer or exposure for sale at those premises or on, at or from that stall of open food until the state of the premises or stall has been remedied:

Provided that an order under this subsection shall not be made unless the Corporation have, not less than fourteen days before the trial of the information, given the person against whom the information was laid written notice of their intention to apply for the order.

1967 c. 80.

(2) An order under the preceding subsection is a disqualification within the meaning of subsection (2) of section 26 of the Criminal Justice Act 1967.

(3) Where an information is or has been laid by or on behalf of the Corporation of a kind described in subsection (1) of this section, and application is made by or on behalf of the Corporation for an order under this subsection, the court may, if satisfied—

- (a) by evidence tendered by or on behalf of the Corporation; and
- (b) after affording the person against whom the information is or was laid, if he appears, an opportunity to be heard and tender evidence;

that the use of the premises or stall for the storage, sale or offer or exposure for sale of open food, involves imminent risk of injury to health, make an interim order prohibiting, either absolutely or subject to conditions, the use of those premises or that stall for that purpose until the earliest opportunity for trying the information:

Provided that the court shall not entertain an application under this subsection unless it is satisfied that at least three clear days' notice in writing of intention to make it and of the time at which it would be made has been given to the person against whom the information is or was laid and, if he is not that person, to the owner of the premises or stall, as provided in the next following subsection.

(4) Notice for the purpose of the proviso to the last preceding subsection may be served in any way, except by post, authorised

by rules made under section 15 of the Justices of the Peace Act 1949 for the service of a summons issued by a justice of the peace; and, where the person to be served, including a corporation, is the person against whom the information is or was laid, it may as an alternative be served by leaving it for him with some person at the premises to which the information relates.

PART IV
—cont.

1949 c. 101.

(5) The Corporation shall serve a copy of an interim order made under subsection (3) of this section as soon as may be after it has been made on the person against whom the information was laid and, if he is not that person, on the owner of the premises or stall and shall affix a copy of it in a conspicuous position on the premises or, if practicable, on the stall.

(6) If on the trial of an information under this section the court determines that, at the date of any interim order that may have been made under this section, the use of the premises or stall in question for the sale of open food did not involve imminent risk of injury to health, the court may order the Corporation to pay to the person against whom the information was laid and any other person who at the time when the interim order was made was carrying on a food business at those premises or on, at or from that stall and to the owner of the premises or stall, or any of them, compensation for loss occasioned by the interim order.

(7) Without prejudice to the right of appeal against conviction or sentence under the Magistrates' Courts Act 1952, a person aggrieved by a decision of a magistrates' court under this section may appeal to the Crown Court; and for the purposes of this subsection a person aggrieved shall include—

- (a) a person other than the person convicted owning or carrying on business at premises or on, at or from a stall the subject of an order under subsection (1) of this section;
- (b) a person owning or carrying on business at premises or on, at or from a stall the subject of an order under subsection (3) of this section;
- (c) the Corporation, where the court refuses to make an order under subsection (1) or subsection (3) of this section;
- (d) any person, including the Corporation, complaining of the award or refusal of compensation under subsection (6) of this section or of the amount of compensation awarded;

PART IV
—cont.

(e) the applicant or the Corporation where the appeal is against a decision of a magistrates' court under subsection (11) of this section.

(8) A person who contravenes an order under subsections (1) or (3) of this section shall be liable on summary conviction to a fine not exceeding one hundred pounds.

(9) Where an order has been made under subsection (1) of this section, then, on the application of any person intending to carry on a food business at the premises or on, at or from the stall, to which the order relates, the Corporation may, under the hand of any of its officers authorised in that behalf, issue a certificate that the state of the premises or stall has been remedied and such a certificate shall be conclusive evidence of that fact.

(10) Where an order has been made under subsection (3) of this section and any such certificate as aforesaid is issued before the trial of the information, the order shall cease to have effect and, if the certificate is produced to the court, the court shall dismiss any application that may have been made under subsection (1) of this section but without prejudice to the award of compensation under subsection (6) of this section.

(11) Where the Corporation, on an application for a certificate under subsection (9) of this section, refuses a certificate, the applicant may appeal to a magistrates' court and the court, if it allows the appeal, shall revoke the order under subsection (1) of this section or, as the case may be, revoke the order under subsection (3) of this section and dismiss the application under the said subsection (1).

(12) Subsection (2) of section 71 (Appeals) of this Act shall not apply to an appeal against a refusal of a certificate as aforesaid.

(13) A magistrates' court, when exercising its jurisdiction to make an interim order under subsection (3) of this section or to dismiss an application under subsection (1) of this section in pursuance of powers conferred by subsection (10) of this section, may consist of a single justice.

(14) In this section "equipment", "food business", "open food" and "stall" have the same meaning as in the relevant regulations made under section 13 of the Food and Drugs Act

1955 c. 16.

(4 & 5 Eliz. 2.) 1955:

Provided that "stall" does not include a movable vehicle.

PART V

PARKS, BURIAL GROUNDS AND OTHER MUNICIPAL PROPERTY

24.—(1) The Arboretum and the recreation grounds shall for all purposes be deemed to be public walks and pleasure grounds appropriated, laid out and maintained by the Corporation for the purpose of being used as such by the Corporation under the Public Health Act 1875 and the provisions of the Public Health Acts shall apply to them accordingly.

Provisions as to Arboretum and certain recreation grounds.
1875 c. 55.

(2) Notwithstanding the provisions of section 44 of the Public Health Acts Amendment Act 1890 as so applied to Bass' Recreation Ground the Corporation may close to the public an area thereof not exceeding three and a half acres for such days as they think fit, including Sundays, but not exceeding fifty-four days in any year and may grant the use of the same in accordance with the provisions of the said section 44 but subject to the foregoing provisions of this subsection.

1890 c. 59.

(3) The following provisions of the Act of 1882 are hereby repealed:—

Section 19 (Corporation to keep Little Chester Recreation Ground unbuilt upon);

Section 20 (Not to alienate);

Section 21 (Corporation may enclose and lay out said lands forming Little Chester Recreation Ground);

Section 24 (Corporation to hold and maintain Arboretum as public pleasure ground);

Section 30 (Use of the Arboretum, etc.);

Section 33 (Corporation to maintain Bass' Recreation Ground); and

Section 35 (Use of Bass' Recreation Ground).

(4) In this section—

“ the Act of 1882 ” means the Derby Corporation Act 1882; 1882 c. ccxlv.

“ the Arboretum ” means the Derby Arboretum referred to in Part III of the said Act of 1882 and any lands appropriated and added thereto under section 31 (Corporation may appropriate land belonging to them as addition to Arboretum) of the Act of 1882;

“ Bass' Recreation Ground ” means the recreation ground in the borough known as Bass' Recreation Ground referred to in section 32 (Bass' Recreation Ground to remain vested in Corporation) of the Act of 1882;

PART V
—cont.

“ Little Chester Green Recreation Ground ” means the lands delineated on the plan referred to in section 17 (Plan of Little Chester Recreation Ground) of the Act of 1882 and in that Act referred to as the Little Chester Recreation Ground;

1875 c. 55.

“ the Public Health Acts ” means the Public Health Act 1875 and any Acts amending or extending that Act;

“ the recreation grounds ” mean Bass’ Recreation Ground and the Little Chester Green Recreation Ground.

Parking places
in parks, etc.
1967 c. 76.

25.—(1) For the purpose of providing a parking place under section 28 of the Road Traffic Regulation Act 1967 the Corporation may, with the consent of the Secretary of State, utilise any part of a park, pleasure ground or open space provided by them or under their management and control:

Provided that the part of any park, pleasure ground or open space utilised under this section shall not exceed one-eighth of the total area thereof, or one acre, whichever is the less.

(2) No power conferred upon the Corporation by this section shall be exercised in such a manner—

(a) as to be at variance with an express trust subject to which land or a building is held, managed or controlled by the Corporation, without an order of the High Court, or of the Charity Commissioners, or of the Secretary of State, or, where the trust instrument reserves to the donor, or any other person, the power to vary the trust, without the consent of the donor or that other person; or

(b) as to contravene a covenant or condition subject to which a gift or lease of land or a building has been accepted by, or granted to, the Corporation, without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.

1906 c. 25.

(3) In this section “ open space ” has the same meaning as in the Open Spaces Act 1906.

Extension of
power to
maintain
burial
grounds.

26.—(1) The powers of the Corporation in relation to a burial ground maintainable by them shall include power—

(a) to put, and keep, in order any memorial therein;

(b) to level any grave therein;

(c) to remove the whole or any part of a memorial therein;

(d) to alter the position of any such memorial.

(2) Before exercising a power conferred by paragraph (b), (c) or (d) of the foregoing subsection the Corporation shall—

(a) publish a notice of their intention to do so once in each of two successive weeks in a local newspaper circulating in the borough, with an interval between the dates of publication of not less than six clear days;

- (b) display a notice thereof in a conspicuous position in the burial ground; and
- (c) serve a notice thereof upon the owner of the grave, or upon a relative of a deceased person whose remains are interred therein, if after reasonable inquiry the name and address of such owner or relative can be ascertained.

(3) Each of the notices shall—

- (a) contain brief particulars of the Corporation's proposals, and specify an address at which full particulars of the proposals can be obtained, unless the brief particulars are of proposals incapable of further statement;
- (b) specify the date on which it is intended that the Corporation will begin to carry out the proposals, which shall not be earlier than the fourteenth day after the date of the later of the two publications, or than the twenty-first day after the date on which the notice in the burial ground is first displayed, or, where notice is required to be served, than the twenty-first day after the date of service whichever is the latest; and
- (c) state the effect of the next following subsection.

(4) If notice of objection to a proposal, and of the ground thereof, is given to the Corporation before the date specified under paragraph (b) of the last foregoing subsection, that proposal shall not be carried out without the consent of the Secretary of State unless the notice is withdrawn.

(5) The Corporation may put to such use as they think appropriate, or destroy, any memorial removed under this section, unless it is claimed and removed by the person claiming it or some person acting on his behalf within three months after the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section, or, where notice has been served under paragraph (c) thereof, after the date of such service, whichever is the later.

(6) Where a memorial is removed by the Corporation under this section, the Corporation may erect at their own expense, in substitution, a memorial of a value not exceeding twenty-five pounds.

(7) The Corporation shall cause a record to be made of each memorial taken from the burial ground under this section containing—

- (a) a copy of any inscription on it; and
- (b) if it is intended to preserve the memorial, a statement showing where it has been taken to;

and shall deposit a copy of the record with the Registrar General.

PART V
—cont.

(8) (a) Nothing in the foregoing provisions of this section shall relieve the Corporation from any obligation to which they are subject to obtain for any work a faculty or licence of a consistory court.

(b) Subsections (2) to (4) of this section shall not have effect in relation to any work for which the Corporation obtain such a faculty or licence; and subsection (5) thereof shall not have effect in relation to any memorial for whose removal such a faculty or licence was obtained.

(9) In this and the next following section—

1906 c. 25.

“burial ground” has the same meaning as in the Open Spaces Act 1906;

“grave” includes a grave space;

“memorial” means any object erected, placed or planted for the commemoration of the dead, and includes any wall, kerb or railing protecting, enclosing or marking a grave or memorial.

For
protection of
Common-
wealth War
Graves
Commission.

27.—(1) In this section—

“the Commission” means the Commonwealth War Graves Commission;

“Commonwealth war burial” means a burial of any officer or man of the naval, military or air forces of His Majesty fallen in the war of 1914 to 1921 or in the war of 1939 to 1947.

(2) In relation to any burial ground to which the provisions of section 26 (Extension of power to maintain burial grounds) of this Act apply and in which there are situated any Commonwealth war graves relating to the war of 1914 to 1921 or to the war of 1939 to 1947 the Corporation shall—

(a) not later than the date upon which such notice is first published in a newspaper circulating in the borough serve upon the Commission a copy of any notice which the Corporation are required to publish pursuant to the said section 26;

(b) give written notification to the Commission of their intention to apply for a faculty or licence of a consistory court for the purposes of exercising a power conferred by paragraph (b), (c) or (d) of subsection (1) of the said section 26;

and in any such case shall have due regard to any written representations made by the Commission within a period of one month from the service of the notice or the giving of the notification, as the case may be.

(3) The Corporation shall not in pursuance of the powers of the said section 26 remove any memorial placed or erected over any Commonwealth war grave unless they have first given to the Commission satisfactory assurances in writing in regard to all or such of the following matters as the Commission consider appropriate, namely:—

- (a) that no other memorial shall be placed or erected over such grave;
- (b) that any Commonwealth war burial in such grave shall at all times be protected from interference or disturbance otherwise than interference or disturbance authorised by a licence granted by the Secretary of State or authorised by a faculty or licence of a consistory court after prior notification to the Commission of the application for any such licence or faculty;
- (c) that in the case of any headstone placed or erected by the Commission over any such grave such memorial shall be removed only in accordance with such arrangements and in such manner including disposal of the memorial as shall be agreed in writing between the Corporation and the Commission.

(4) If a Commonwealth war burial would be affected by a consent given by the Secretary of State under subsection (4) of the said section 26 the Corporation shall, not later than the date on which the matter is referred to the Secretary of State, inform the Commission in writing of such reference and the Secretary of State shall consider any representations submitted to him by the Commission within a period of twenty-eight days from the date of reference to the Secretary of State.

PART VI

HACKNEY CARRIAGES, ETC.

28. In this Part of this Act, unless otherwise expressly provided or unless the subject or context otherwise requires—

Interpretation
of Part VI.

“the Act of 1847” means the Town Police Clauses Act 1847;

1847 c. 89.

“hackney carriage” has the same meaning as in the Act of 1847 save that it does not include a public service vehicle;

“the prescribed distance” has the same meaning as in the Act of 1847;

“private hire vehicle” (except in section 44 (Signs or notices on, and advertisements in connection with, private hire vehicles) of this Act) means a motor vehicle (within the

PART VI

—cont.

1960 c. 16.

meaning of the Road Traffic Act 1960), not being a vehicle licensed under the provisions of the Act of 1847 with respect to hackney carriages, which is kept for the purpose of being let out for hire with a driver for the carrying of passengers in such circumstances that it does not require to be licensed under the said provisions, but does not include—

(a) a vehicle which is kept and used ordinarily for the purpose of being let out for hire by the day or for longer periods of hire;

(b) a vehicle belonging to or used by the railways board for the purpose of carrying passengers or their luggage to or from any of their railway stations, railway or dock premises;

(c) a vehicle kept by any person in connection with any business carried on by him as a funeral director or undertaker and used wholly or mainly in connection with that business;

(d) a public service vehicle; or

(e) a vehicle belonging to a class or type defined in byelaws made by the Corporation under this section.

Provisions
as to motor
vehicles let
for hire.

29. The Corporation may make byelaws for applying, with such consequential modifications as may be provided for in the byelaws and to the extent determined by such byelaws, any of the provisions of—

(1) sections 37 to 67 of the Act of 1847, as subsequently amended, as they apply with respect to hackney carriages and their proprietors and drivers; and

(2) any byelaws made by the Corporation and in force with respect to such carriages, proprietors and drivers;

to private hire vehicles and their proprietors and drivers.

Fixing of
fares for
hackney
carriages.

30.—(1) The Corporation may fix the rates or fares as well for time as distance, to be paid in respect of hackney carriages plying for hire within the prescribed distance by means of a table (hereinafter in this section referred to as a “table of fares”) made or varied in accordance with the provisions of this section.

(2) (a) Where the Corporation make or vary a table of fares they shall publish in at least one local newspaper circulating in the borough a notice setting out the table of fares or the variation thereof and specifying the period, which shall not be less than fourteen days from the date of the first publication of the notice, within which and the manner in which objections to the table of fares or variation can be made.

(b) A copy of the notice referred to in paragraph (a) of this subsection shall for the period of fourteen days from the date of the first publication thereof be deposited at the office of the town clerk and shall at all reasonable hours be open to public inspection without payment.

(3) If no objection to a table of fares or variation is duly made within the period specified in the notice referred to in subsection (2) of this section, or if all objections so made are withdrawn, the table of fares or variation shall come into operation on the date of the expiration of the period specified in the notice or the date of the withdrawal of the objection or, if more than one, of the last objection, whichever date is the later.

(4) If objection is duly made as aforesaid and is not withdrawn, the table of fares or variation shall be of no effect unless and until it is confirmed by the Secretary of State and before confirming a table of fares or variation the Secretary of State may, if he thinks fit, cause a local inquiry to be held into the same and, after considering the report of the person who held the inquiry, may confirm the table of fares or variation with or without modification.

(5) A table of fares made or varied under this section shall have effect for the purposes of the Act of 1847 as if included in byelaws made by the Corporation under section 68 of that Act.

(6) On the coming into operation of a table of fares made under this section, any byelaws made by the Corporation for fixing the rates and fares under section 68 of the Act of 1847, or any table of fares previously made under this section, shall cease to have effect.

(7) Section 252 of the Act of 1933 shall extend and apply to a table of fares made under this section as it applies to byelaws made by the Corporation.

31.—(1) For the purposes of their functions under the Act of 1847, the Corporation may from time to time appoint stands for hackney carriages for the whole or any part of a day in any street in the borough and, with the consent of the owner, on any land not forming part of a street.

(2) Before appointing any stand for hackney carriages in exercise of the powers of this section, the Corporation shall give public notice of the proposal by advertisement in a local newspaper circulating in the borough and shall take into consideration any objections or representations in respect of such proposal which may be made to them in writing within twenty-eight days of the first publication of such notice.

PART VI
—cont.

(3) Nothing in this section shall empower the Corporation to appoint any such stand—

(a) so as unreasonably to prevent access to any premises, or in any station, of the railways board, except with their consent; or

(b) so as unreasonably to prevent access to any station or depot of any passenger road transport operators except with their consent.

(4) Any byelaws made by the Corporation before the passing of this Act for fixing stands of hackney carriages under section 68 of the Act of 1847 shall cease to have effect, but any stands fixed by such byelaws shall be deemed to have been appointed under this section.

Prohibition
of other
vehicles
on hackney
carriage
stands.

32.—(1) No person shall cause or permit any vehicle, other than a hackney carriage licensed to ply for hire within the prescribed distance, to wait on any stand for hackney carriages during any period for which that stand has been appointed or is deemed to have been appointed by the Corporation under the provisions of section 31 (Stands for hackney carriages) of this Act.

(2) Notice of the prohibition contained in this section shall be indicated by such traffic signs as may be authorised for the purpose by the Secretary of State in pursuance of his powers under sections 54 and 55 of the Road Traffic Regulation Act 1967.

1967 c. 76.

(3) In any proceedings under this section against the driver of a public service vehicle it shall be a defence to show that, by reason of obstruction to traffic or for other compelling reason, he caused his vehicle to wait on a stand or part thereof and that he caused or permitted his vehicle so to wait only for so long as was reasonably necessary for the taking up or setting down of passengers.

(4) If any person contravenes the provisions of this section, he shall be liable in the case of a first conviction to a fine not exceeding ten pounds and in the case of a second or subsequent conviction to a fine not exceeding twenty pounds.

Recovery of
charges for
inspection.

33. The Corporation may, if the council so resolve, recover (either before or after the carrying out of an inspection) from the proprietor of a hackney carriage or private hire vehicle reasonable charges in respect of the cost of the carrying out by or on behalf of the Corporation of inspections of the hackney carriage or vehicle for the purpose of determining whether a licence should be granted or renewed therefor under the Act of 1847.

Fitness of
hackney
carriages,
etc.

34. Any person acting on behalf of the Corporation and authorised in writing by the town clerk shall have power at all reasonable times to inspect any hackney carriage in the borough

and any private hire vehicle in the borough which is for the time being licensed by the Corporation under the Act of 1847 for the purpose of ascertaining its fitness, and if he is not satisfied as to the fitness of the hackney carriage or vehicle or as to the accuracy of its taximeter he may by notice in writing require the proprietor of the hackney carriage or vehicle to make it or its taximeter available for further inspection at such reasonable time and place as may be specified in the notice and suspend the licence of the proprietor until such time as such authorised person is so satisfied or until the expiration of a period of two weeks, whichever shall first occur.

35. In its application to the borough, section 46 of the Act of 1847 shall have effect as if for the words “twenty-five pence” there were substituted the words “one pound for the first licence and twenty-five pence for any succeeding licence”.

36.—(1) Notwithstanding anything in the Act of 1847, the Corporation may suspend or revoke the licence of a proprietor of a hackney carriage or a private hire vehicle—

(a) on the ground of the unfitness of the hackney carriage or vehicle; or

(b) for any other reasonable cause;

and where the Corporation suspend or revoke such a licence under this subsection they shall give to any such proprietor notice of the grounds on which the licence has been suspended or revoked:

Provided that nothing in this section shall empower the Corporation to revoke the licence of a proprietor of a hackney carriage or private hire vehicle on the ground of the bankruptcy of the proprietor.

(2) Any such proprietor aggrieved by a decision of the Corporation under this section may appeal to the Crown Court.

37.—(1) Notwithstanding anything in the Act of 1847, the Corporation may suspend or revoke the licence of a driver of a hackney carriage or a private hire vehicle—

(a) on the ground that he has since the granting of the licence been convicted of an offence involving dishonesty, indecency or violence; or

(b) for any other reasonable cause;

and where the Corporation suspend or revoke such a licence under this subsection they shall give to any such driver notice of the grounds on which the licence has been suspended or revoked.

(2) Any such driver aggrieved by a decision of the Corporation under this section may appeal to the Crown Court.

PART VI
—cont.

Qualifications
for drivers
of hackney
carriages,
etc.

1960 c. 16.

Power to
require
applicants
to submit
information.

Period of
licences.

Transfer of
hackney
carriages,
etc.

38. Notwithstanding anything in the Act of 1847 the Corporation shall not grant a licence to act as a driver of a hackney carriage or a private hire vehicle—

(1) to any person under the age of twenty-one years;

(2) to any person who has not for at least twelve months been the holder of a licence granted under Part II of the Road Traffic Act 1960 (not being a provisional licence) authorising him to drive a motor car.

39.—(1) The Corporation may require any applicant for a licence to drive a hackney carriage or a private hire vehicle to submit to them such information as to the physical fitness of the applicant and as to the character of the applicant as they may consider necessary to enable them to determine whether to grant such licence.

(2) If a person knowingly or recklessly makes a false statement in giving information under this section he shall be liable to a fine not exceeding fifty pounds.

40. Notwithstanding anything in section 43 of the Act of 1847, any licence granted by the Corporation in respect of a hackney carriage or a private hire vehicle shall, if the Corporation think fit, remain in force for such period not exceeding three years from the date of the licence as they may determine:

Provided that nothing in this section shall affect the powers of the Corporation to suspend or revoke such a licence.

41.—(1) If a hackney carriage or a private hire vehicle licensed by the Corporation under the Act of 1847 is transferred to a person other than the proprietor or part proprietor whose name is specified in the licence for the hackney carriage or vehicle, the proprietor or part proprietor shall before or within seven days after such transfer give notice thereof in writing to the Corporation specifying the name and address of the person to whom the hackney carriage or vehicle will be or has been transferred and the licence shall be deemed to be revoked if the Corporation disapprove the transfer or proposed transfer of the licence to that person and the hackney carriage or vehicle is or has been transferred to him:

Provided that the Corporation shall not disapprove the transfer or proposed transfer of a licence to a person except upon the ground that he is not a fit and proper person to hold such a licence.

(2) Any person aggrieved by a disapproval of the Corporation under this section may appeal to the Crown Court.

(3) If a proprietor or part proprietor fails to give notice to the Corporation as provided by subsection (1) of this section he shall be liable to a fine not exceeding twenty pounds.

(4) The provisions of this section, so far as they relate to a hackney carriage licence, shall not come into operation until the appointed day.

42. Any person who, within the prescribed distance, on completion of the hire of a hackney carriage or private hire vehicle licensed by the Corporation under the Act of 1847, refuses to pay the fare lawfully due from him in respect of the hiring shall be liable to a fine not exceeding twenty pounds: Penalty on persons refusing to pay fare.

Provided that this section shall not apply in respect of the hire of a private hire vehicle unless byelaws fixing fares have been made by the Corporation under section 29 (Provisions as to motor vehicles let for hire) of this Act in relation to such vehicles and are in operation.

43. The powers of the Corporation under section 68 of the Act of 1847 shall extend so as to enable them to make byelaws for regulating the conduct of passengers in hackney carriages and private hire vehicles. Extension of section 68 of Act of 1847.

44.—(1) As from the appointed day there shall not, in the borough, be displayed on any private hire vehicle any sign or notice— Signs or notices on, and advertisements in connection with, private hire vehicles.

(a) which consists of or includes the word “taxi”, “tax” or “cab”, whether in the singular or plural and whether alone or as part of another word; or

(b) which consists of the words “for hire”; or

(c) the form or wording of which is in any other way such as to suggest that the vehicle on which it is displayed is presently available to take up any passenger wishing to hire it, or would be so available if not already hired.

(2) As from the appointed day no advertisement—

(a) indicating that motor vehicles can be hired on application to a specified address or telephone number, being the address or telephone number of premises in the borough; or

(b) on or near any such premises indicating that motor vehicles can be hired at those premises;

shall include the word “taxi”, “tax” or “cab”, whether in the singular or plural and whether alone or as part of another word unless the vehicles offered for hire are hackney carriages or the advertisement makes it clear that they are not.

PART VI
—*cont.*

(3) Any person who—

- (a) drives a vehicle in respect of which subsection (1) of this section is contravened or causes or permits that subsection to be contravened in respect of any vehicle; or
- (b) subject to subsection (4) of this section, issues, or causes to be issued, an advertisement which contravenes subsection (2) of this section;

shall be guilty of an offence and liable, in the case of a first offence under the paragraph of this subsection in question, to a fine not exceeding twenty pounds and, in the case of a second or subsequent offence under that paragraph, to a fine not exceeding fifty pounds.

(4) Where a person is charged with an offence under paragraph (b) of subsection (3) of this section, it shall be a defence to prove that he is a person whose business it is to publish or arrange for the publication of advertisements and that he received the advertisement in question for publication in the ordinary course of business and did not know and had no reason to suspect that its publication would amount to an offence under that paragraph.

(5) In this section—

“advertisement” includes every form of advertising, whether in a publication or by the display of notices or by means of circulars or other documents or by an exhibition of photographs or a cinematograph film, or by way of sound broadcasting or television, and references to the issue of an advertisement shall be construed accordingly;

“private hire vehicle” means a motor vehicle, other than a hackney carriage or public service vehicle, which is used within the prescribed distance for the purpose of carrying passengers for hire or reward.

PART VII

FINANCE

Power to
borrow.

45.—(1) The Corporation may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

PART VII
—cont.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within ten years from the date of borrowing.

(3) It shall not be lawful to exercise the power of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946. 1946 c. 58.

46.—(1) Any method by which the Corporation are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency. Power to raise money abroad.

(2) (a) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury and subject to such conditions as the Treasury may impose.

(b) The enactments empowering the Corporation to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there was substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there was substituted a reference to the sum expressed in terms of the foreign currency (adjusted where necessary to produce an amount which the Corporation consider appropriate having regard to all the circumstances of the transaction).

(3) Nothing in this section shall be taken as exempting the Corporation from the provisions of any order under section 1 of the Borrowing (Control and Guarantees) Act 1946.

47. In addition to any other method by which the Corporation may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer. Power to raise money by issue of bearer bonds.

48. Nothing in section 46 (Power to raise money abroad) or section 47 (Power to raise money by issue of bearer bonds) of this Act shall be taken as exempting the Corporation from the provisions of the Exchange Control Act 1947. Saving for Exchange Control Act 1947.
1947 c. 14.

PART VII
—cont.

Insurance
fund.

49.—(1) The Corporation may (if they think fit) establish a fund to be called “ the insurance fund ” with a view to providing a sum of money which shall be available for making good such losses, damages, costs and expenses as may from time to time arise in respect of such risks as may from time to time be specified in a resolution of the council (in this section referred to as “ the specified risks ”).

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) When the insurance fund shall amount to the prescribed amount the Corporation shall discontinue the appropriations to the insurance fund under subsection (4) of this section and may not accept any further payments under subsection (6) of this section but if the insurance fund is at any time reduced below the prescribed amount the Corporation shall recommence and continue such appropriations and may accept further payments under the said subsection (6) until the insurance fund be restored to the prescribed amount, and if at any time the Corporation reduce the prescribed amount so that there are more moneys in the insurance fund than the sum so prescribed such moneys shall be transferred to the general rate fund and if any sums shall have been appropriated from the housing revenue account or from the fund or moneys of any undertaking or service under the said subsection (4) to the housing revenue account or, as the case may require, to the fund or moneys of the undertaking or service in such proportions as the Corporation consider equitable and any moneys so transferred to the general rate fund shall be apportioned between the several accounts of that fund in such proportions as the Corporation consider equitable.

(4) The Corporation may from time to time appropriate to the insurance fund such sums as they think fit from the appropriate account in the general rate fund or (in the case of an undertaking or service the accounts of which do not form part of the general rate fund) from the fund or moneys of that undertaking or service and if they think fit from the housing revenue account and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking, department or service of the Corporation which, if the specified risks were insured against in an insurance office, would be properly chargeable with the payment of the premium of such insurance:

Provided that any payment by contribution from the housing revenue account shall not exceed the proportion of the total yearly

payments which in the opinion of the Corporation properly relates to the specified risks arising from the purposes for which that account is kept.

(5) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses, damages, costs and expenses in respect of the specified risks or any of them, all moneys for the time being standing to the credit of the insurance fund shall unless applied in any other manner authorised by any enactment be invested in any statutory securities and the interest and other annual proceeds received by the Corporation in respect of such investment shall be carried to and form part of the general rate fund.

(b) The Corporation shall in every financial year carry to the credit of the insurance fund out of the revenue moneys of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the preceding paragraph of this subsection.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund may be apportioned in the accounts of the Corporation between the several undertakings, departments or services liable to contribute to the insurance fund or (in the case of an undertaking, department or service the accounts of which do not form part of the general rate fund) transferred to the fund or moneys of that undertaking, department or service in such shares or proportions as may be equitable.

(6) (a) The specified risks may include risks in connection with the operations of any body of which the Corporation is a member by virtue of any enactment, and the Corporation may accept payments into the insurance fund from any such body.

(b) For the purposes of this section the Corporation may, if they deem it expedient, include in the specified risks, risks of accident to any teacher, caretaker or other person employed in any voluntary school in the borough.

(7) (a) The insurance fund shall be applied to meet any losses, damages, costs or expenses sustained by the Corporation or by a body referred to in the foregoing subsection, in respect of the specified risks which are payable out of the insurance fund in the order of the dates on which such losses, damages, costs or expenses become ascertained, and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses, damages, costs or expenses the Corporation may with the

PART VII
—cont.

sanction of the Secretary of State borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of the preceding paragraph of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund or, as the case may require, out of the fund or moneys of the undertaking or service or the housing revenue account and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings, departments or services of the Corporation and in such proportions as the Corporation may determine having regard to the risks through which such deficiencies arise.

(8) If and when the Corporation establish an insurance fund under this section any moneys standing to the credit of the insurance discount account provided by the Corporation and in existence at the date of the passing of this Act shall be carried to and form part of the insurance fund provided under this section.

(9) In the event of the insurance fund ceasing to be required to meet losses, damages, costs and expenses in respect of the specified risks, the insurance fund may be carried to and form part of a capital fund established by the Corporation under section 2 of the Local Government (Miscellaneous Provisions) Act 1953 or (if the Corporation so determine) shall be applied in such other manner as the Secretary of State may approve towards the discharge of any debt of the Corporation or otherwise for any purpose for which capital money may properly be applied.

(10) Any covenant or obligation binding on the Corporation to insure against any risk shall (except in so far as the terms of such covenant or obligation otherwise specifically provide) be deemed to be satisfied by a resolution of the council under subsection (1) of this section and that risk shall be one of the specified risks.

(11) In this section—

“ insurance office ” means—

(a) an insurance company; or

(b) an underwriter being a member of an association of underwriters;

“ the prescribed amount ” means such sum as may from time to time be prescribed by the council.

PART VII
—cont.Reserve
funds.

50.—(1) (a) The Corporation may (if they think fit) provide a reserve fund in respect of any undertaking, department or service of the Corporation from which revenue is derived by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are applied in any other manner authorised by any enactment) investing the same in statutory securities until the fund so provided amounts to the maximum for the time being prescribed by the Corporation.

(b) Any income arising from the investment of the moneys in the reserve fund in manner provided by this subsection shall be carried to and form part of the general rate fund and an amount equivalent to such income shall be credited to the reserve fund.

(2) The reserve fund provided under this section may in respect of the undertaking, department or service to which it relates be applied—

- (a) in making good any deficiency at any time happening in the income of the Corporation from the undertaking, department or service; or
- (b) in meeting any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking, department or service; or
- (c) in or towards the payment of the cost of renewing, improving or extending any works, buildings, machinery, plant or conveniences forming part of the undertaking, department or service or otherwise for the benefit thereof;

and so that if the fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to the reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(4) If and when the Corporation provide a reserve fund under this section in respect of any such undertaking, department or service as aforesaid any moneys standing to the credit of any reserve fund or contingency or depreciation fund provided by the Corporation in respect of that undertaking, department or service and in existence at the date of the passing of this Act shall be carried to and form part of the reserve fund provided under this section in respect of that undertaking, department or service.

51. Notwithstanding anything in any other enactment the moneys standing to the credit of any capital, insurance, repairs, reserve, renewals, contingencies or other similar fund established Investment of capital, insurance, etc., funds of Corporation.

PART VII
—cont.

by the Corporation, other than funds applicable wholly or partly for the redemption of debt, may be invested in similar manner and subject to the same restrictions as money of the fund maintained by the Corporation for the purposes of local government superannuation under the statutory powers for the time being in force.

Loans for
erection of
buildings,
etc.

52.—(1) The Corporation may advance money to—

- (a) any person for the purpose of enabling or assisting him to purchase or lease any land in the borough; or
- (b) the owner or lessee of—
 - (i) any land in the borough; or
 - (ii) any land (whether within or outside the borough) acquired from or leased by the Corporation;

for the purpose of enabling or assisting him to build on such land or to extend or improve any existing building thereon:

Provided that any such advance shall not exceed nine-tenths of the amount which in the opinion of the Corporation will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.

1963 c. 29.

(2) The provisions of subsections (2), (4) and (5) of section 3 of the Local Authorities (Land) Act 1963 (which section empowers local authorities to make advances for the erection of buildings on land sold or let by them) shall apply in relation to an advance made under subsection (1) of this section, and for that purpose those provisions shall have effect subject to the substitution for references therein to an advance made under the said section 3 of references to an advance made under subsection (1) of this section and to any other necessary modifications.

(3) The borrower may with the permission of the Corporation (which shall not be unreasonably withheld) at any time transfer his interest in the land in respect of which the advance was made but any such transfer shall be made subject to the terms of the instrument securing the advance.

(4) Any authorised officer shall have power at all reasonable times to enter any building in respect of which an advance has been made under this section for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are being complied with.

(5) In this section—

“lessee” includes a person to whom the Corporation have agreed to grant a lease and the expression “lease” shall be construed accordingly; and

“owner” means the person (other than a mortgagee not in possession) entitled, either with or without the consent of any other person, to dispose of the fee simple of the land.

PART VII
—cont.

53.—(1) The Corporation may, if requested so to do by any person—

Power to
Corporation
to assist
industry.

- (a) who is the owner or intended owner or lessee of any land in the borough; or
- (b) who has purchased or intends to purchase or take on lease from the Corporation any land (whether within or outside the borough);

being in either case land upon which an industrial building is built or is intended to be built, extended or improved, carry out any work required in relation to the preparation or improvement of the site for that building or for the provision or improvement of services or facilities on which any trade or business carried on or intended to be carried on in such building depends, and may make grants or loans towards the cost of such works or of the provision or improvement of such services or facilities or both:

Provided that nothing in this section shall authorise the Corporation to carry out—

- (i) works for the provision or improvement of services which it is the function of the Post Office to provide or improve except with the consent or approval in writing of the Post Office;
- (ii) works outside the curtilage of the building or proposed building for the provision or improvement of services which it is the function of statutory undertakers other than the Post Office to provide or improve.

(2) In this section “industrial building” has the same meaning as in the Local Employment Act 1960.

1960 c. 18.

54. Without prejudice to section 292 of the Act of 1936, and to that section as applied by any other enactment, where under any enactment the Corporation are empowered to execute works at the request of, or in default of, the owner or occupier of any premises, and to recover from him the expenses incurred by them in so doing, they may include in, and recover as part of, the expenses such additional sum, not exceeding seven per centum of the cost of the works, as they think fit in respect of their establishment charges.

Establishment
expenses.

PART VIII

MISCELLANEOUS

As to
Central
Omnibus
Station.
1967 c. 76.

55.—(1) The parking place in the borough known as the Central Omnibus Station shall be deemed to be a parking place provided by the Corporation in pursuance of section 28 of the Road Traffic Regulation Act 1967 which may be used by public service vehicles and is hereby appointed as a station for such vehicles as if it had duly been so appointed by an order made by the Corporation under section 33 of that Act.

(2) The following provisions of this section shall have effect in consequence of the provision made by subsection (1) of this section, that is to say:—

(a) Subsections (2) and (3) and, so far as applicable, subsection (8) of the said section 33 (which subsections relate, *inter alia*, to the provision of accommodation and the making of charges in connection with a station for public service vehicles appointed under the said section 33) and subsection (9) of that section (which confers borrowing powers for those purposes) shall apply in relation to the Central Omnibus Station:

(b) Subsection (5) of section 31 of the said Act of 1967 (which prohibits persons employed in connection with vehicles within a parking place plying for hire or accepting passengers for hire) shall not apply with respect to any public service vehicle within the Central Omnibus Station.

(3) Subject to subsections (4), (5) and (6) of this section, the Secretary of State or the Corporation may by order provide that subsection (1) of this section shall have effect as if it provided for the appointment of the Central Omnibus Station as a station for public service vehicles of such class only as may be specified in the order, or (in so far as it provides for such appointment, whether in relation to all or a class only of public service vehicles) that it shall cease to have effect.

(4) In relation to an order made or proposed to be made by the Secretary of State under subsection (3) of this section, subsections (4) to (7) of section 84A of the said Act of 1967 (which provide for the variation or revocation by the Secretary of State of certain orders under that Act made by other authorities) shall apply as they apply in relation to an order made or proposed to be made by the Secretary of State under the said subsection (4) varying or revoking an order made by another authority under section 33 of that Act.

(5) Subsection (1) of section 84A of the said Act of 1967 (which provides for the Secretary of State to direct other authorities to make certain orders under that Act) shall apply in relation to the power of the Corporation to make an order under subsection (3) above as it applies in relation to the power of a local authority to make an order under the said section 33 and accordingly subsection (1) of the said section 84A shall have effect as if the reference therein to the said section 33 included a reference to the said subsection (3).

(6) In relation to an order made or proposed to be made by the Corporation under subsection (3) of this section, the following provisions shall have effect, that is to say:—

- (a) before making the order the Corporation shall consult with the traffic commissioners for the East Midland Traffic Area; and
- (b) section 84C of the said Act of 1967 (which provides for the procedure as respects certain orders under that Act) and, so far as applicable, the provisions of any regulations for the time being in force under that section, and section 84D of the said Act (which, inter alia, provides for the variation and revocation of certain orders under that Act), shall apply as they apply in relation to an order made or proposed to be made by the Corporation under the said section 84D varying or revoking an order made by them under the said section 33.

(7) Any money borrowed by the Corporation for the construction of the said Central Omnibus Station shall be deemed to have been borrowed for a purpose for which the Corporation are authorised to borrow.

(8) In this section the reference to the East Midland Traffic Area is to the traffic area constituted under that name for the purposes of Part III of the Road Traffic Act 1960.

1960 c. 16.

56.—(1) The Corporation may within or outside the borough provide and maintain or contribute to the cost of providing and maintaining recreational, social and welfare facilities for their employees. Recreational, etc., facilities for employees.

(2) For the purposes aforesaid the Corporation may—

- (a) erect or maintain buildings;
- (b) make such charges as they think fit for the use of facilities provided under this section;
- (c) make regulations for the management of such buildings and facilities.

PART VIII
—cont.

Recovery of
rates from
certain
owners.

57.—(1) (a) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on the hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

(b) The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section “owner” in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditaments to which subsection (1) of section 55 of the General Rate Act 1967 applies by virtue of a resolution of the council.

1967 c. 9.

Recovery of
water rates
and charges.

58. Notwithstanding the provisions of any enactment any water rates and charges collected by the Corporation on behalf of any statutory water undertakers shall (without prejudice to any other right or remedy by the said undertakers) be recoverable by the Corporation in a magistrates’ court in the same manner and subject to the same provisions as the general rate.

Notice of
alteration of
rents without
notice to quit.
1968 c. 42.

59.—(1) Section 12 of the Prices and Incomes Act 1968 (which enables a local authority to increase the rent payable to the authority for houses let on a weekly or other periodical tenancy whose rents fall to be carried to the authority’s housing revenue account without the tenancy being terminated) shall—

(a) apply to all houses within the meaning of the Housing (Financial Provisions) Act 1958 belonging to the Corporation; and

(b) as so applied, extend to a reduction as well as to an increase of rent.

(2) Accordingly the said section 12 shall, as it applies to the Corporation as a local authority within the meaning of that section, have effect as if in subsection (1)—

(a) the words “on a weekly or other periodical tenancy” were omitted;

(b) after the word “increased” there were inserted the words “or reduced”; and

(c) after the word “increase” there were inserted the words “or reduction”;

1958 c. 42.

and as if in subsection (4) for the definition of "local authority houses" there were substituted the words "'local authority houses' are houses belonging to the local authority" and after the word "increase" there were inserted the words "or reduction".

PART VIII
—cont.

60. Section 52 (Licence for sale out of market) of the Derby Corporation Act 1877 shall have effect as if for the words "one pound" there were substituted the words "five pounds or such greater amount as the Corporation may, with the approval of the Secretary of State, determine".

Alteration
of fees for
licence for
sale out of
market.
1877 c. cxviii.

61.—(1) Section 52 (Licence for sale out of market) and section 53 (Prohibition of sale except in markets, etc.) of the Derby Corporation Act 1877 shall each have effect as if the maximum fine for the offences specified in those sections were a fine not exceeding twenty pounds instead of a fine not exceeding two pounds.

Increase of
fines.

(2) The maximum fine which may be imposed on a summary conviction of an offence specified in section 123 (Extension of section 28 of 10 & 11 Vict. c. 89) of the Derby Improvement Act 1879 shall be a fine not exceeding twenty pounds.

1879 c. ccxv.

62.—(1) The Corporation may provide services and facilities for the processing of data by computer or by any other equipment of the Corporation which the Corporation may possess for any person and the Corporation may make such charges as may be agreed for the provision of those services and facilities.

As to use
of computer
equipment
of
Corporation.

(2) Information obtained by any employee of the Corporation in the course of the provision of such services or facilities shall not without the consent of the person from whom it was obtained be disclosed by that employee except for the purpose of performing his duties in relation to those services and facilities or in such cases as may be required by law.

63. Any specimen, work of art or other object in the possession of the Corporation for the purposes of any museum or art gallery provided by them may be used by them for educational purposes and circulated to schools, colleges and other educational establishments in the borough or loaned to any such establishment for such period and subject to such conditions as the Corporation may determine:

Power to lend
objects for
educational
purposes.

Provided that the power conferred upon the Corporation by this section shall not be exercised in such a manner—

- (1) as to be at variance with a trust subject to which the object is held by the Corporation without the consent of the donor or the trustee or the Secretary of State; or

PART VIII
—cont.Disposal of
unsuitable
specimens.

- (2) as to contravene a covenant or condition subject to which a gift or loan of an object has been accepted by the Corporation without the consent of the donor or other person entitled in law to the benefit of the covenant or condition or the Secretary of State.

64.—(1) The Corporation may sell, lend, exchange or give or otherwise dispose of any specimen, work of art, book or document—

- (a) vested in them which in the opinion of the Corporation is not required for exhibition or use in any museum, art gallery, library or other building of the Corporation; or
- (b) coming into the custody of the Corporation after being left at any museum, art gallery, library or other building of the Corporation for the purpose of identification or otherwise and which has been in the possession of the Corporation for a period of not less than three months.

(2) The Corporation may make arrangements by way of sale, loan, exchange or gift with any person being the owner of any museum, art gallery or library for the transfer to that person of any specimen, work of art, book or document vested in the Corporation which in the opinion of the Corporation is more suitable for exhibition or use in the museum, art gallery or library of that person than in a museum, art gallery, library or other building of the Corporation.

(3) Where any object referred to in paragraph (a) of subsection (1) of this section has become vested in the Corporation by virtue of a gift or bequest—

- (a) the Corporation shall, if reasonably practicable, consult with the donor or with the personal representatives or trustees of the donor before exercising the powers of this section; and
- (b) the powers conferred by this section shall not, during a period of thirty-five years commencing on the date on which it became vested, be exercisable as respects that object in any manner inconsistent with any condition attached to the gift or bequest, except with the consent of the donor or the personal representatives or trustees of the donor.

(4) Where any object referred to in paragraph (b) of subsection (1) of this section is left in their custody, the Corporation—

- (a) shall at that time give notice of the effect of the said paragraph (b) to the person leaving the object; and
- (b) shall, if reasonably practicable, consult with that person, or his personal representatives, before exercising the powers of this section.

PART VIII
—cont.

(5) Any moneys received by the Corporation in the exercise of the powers of this section as respects any object which has become vested in the Corporation by virtue of a gift or bequest shall be applied by them in the purchase of specimens, works of art, books or documents or paid into the art fund maintained by them under section 15 of the Public Libraries and Museums Act 1964 except in a case in which such moneys exceed fifty pounds 1964 c. 75. and are subject to a trust the terms of which prevent them being so applied or paid.

65.—(1) A committee lawfully authorised by the council to exercise any powers of the council under any enactment may, subject to any direction of the council, appoint such sub-committees consisting either wholly or partly of members of the committee as the committee think fit and, subject as aforesaid, may delegate with or without restrictions or conditions any of their functions to a sub-committee so appointed.

Delegation of
powers to
committees
and sub-
committees.

(2) A sub-committee appointed under this section (other than a sub-committee of a committee for regulating and controlling the finance of the council or of the borough) may include persons who are not members of the council:

Provided that—

- (a) a majority of the members of any such sub-committee shall be members of the council; and
- (b) whenever at any meeting of any such sub-committee the members present thereat do not include a majority of members of the council, any decision of the sub-committee shall have no effect unless it is confirmed by the committee.

(3) Nothing in this section shall authorise the appointment of a sub-committee for any purpose for which any committee of the council are authorised to appoint a sub-committee under any other enactment.

(4) The provisions of this section shall not operate to permit the council to delegate the power to levy, or issue a precept for, a rate or to borrow money.

PART IX

GENERAL

66.—(1) In this Act “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

The appointed
day.

PART IX
—cont.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

(a) of the passing of any such resolution and of the day fixed thereby; and

(b) of the general effect of the provisions of this Act coming into operation as from that day;

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

(a) a copy of any such newspaper containing any such notice; or

(b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

Confirming
authority for
byelaws.

67. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Secretary of State.

Local
inquiries.

68.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act.

(3) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

1946 c. 31.

Liability of
directors, etc.

69.—(1) Where an offence under any of the provisions of this Act mentioned in subsection (2) of this section committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

(2) The provisions hereinbefore referred to are—

PART IX
—cont.

Section 23 (Closure of insanitary food premises and stalls);

Section 32 (Prohibition of other vehicles on hackney carriage stands);

Section 41 (Transfer of hackney carriages, etc.);

Section 44 (Signs or notices on, and advertisements in connection with, private hire vehicles).

(3) In subsection (1) of this section “director”, in relation to any body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body.

70. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation. Restriction on right to prosecute.

71.—(1) Section 300 of the Act of 1936 shall apply to appeals to a magistrates’ court under this Act; and sections 301 and 302 of that Act shall apply accordingly. Appeals.

(2) Where any requirement, refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

(a) involves the execution of any work or the taking of any action; or

(b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used up to that time ;

then, until the time for appealing has expired, or, if an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

(i) no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Corporation themselves execute the work or take the action; and

(ii) that person may carry on that business, and use those premises for that purpose.

PART IX
—cont.

Protection of
members and
officers of
Corporation
from personal
liability.

1875 c. 55.

For protection
of certain
statutory
undertakers.

72. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

73. For the protection of the undertakers the following provisions shall, unless otherwise agreed in writing between the Corporation and the undertakers, apply and have effect:—

(1) In this section, unless the subject or context otherwise requires—

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

“ the undertakers ” means—

the Central Electricity Generating Board;
the East Midlands Electricity Board;
the East Midlands Gas Board;
the Gas Council;
the Post Office;
the water board;

or any of them, as the case may be:

(2) Nothing in the following sections of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections and the said powers shall be so exercised as not to render unreasonably inconvenient the access to any apparatus or operational land:—

Section 12 (Trees, grass verges and gardens);

Section 25 (Parking places in parks, etc.):

(3) Nothing in section 12 (Trees, grass verges and gardens) or section 13 (Prohibition of vehicles on grass verges, etc.) of this Act shall affect the rights of the undertakers with respect to any apparatus (including the placing of apparatus) in any grass verge or garden:

Provided that in exercising such rights, the undertakers shall not cause or permit, except in the case of necessity, vehicles to enter upon any such verge which is maintained in an ornamental condition or mown, or any garden:

(4) (a) When the Corporation give any notice under subsection (1) of section 16 (Securing of unoccupied houses under Act of 1957) of this Act they shall give a copy of such notice to the East Midlands Electricity Board, the Gas Council, the East Midlands Gas Board and the water board;

- (b) Nothing in the said section 16 shall prejudice the right of the undertakers to enter upon any premises in the exercise of their statutory powers in that behalf:

PART IX
—cont.

Provided that, without prejudice to any other obligation or liability arising in respect of any entry in exercise of statutory powers, the undertakers in exercising such powers of entry in respect of any premises required to be secured under the said section 16 shall ensure that the premises are not left less secure by reason of the entry:

- (5) Nothing in section 31 (Stands for hackney carriages) of this Act shall empower the Corporation to appoint any stand for hackney carriages so as unreasonably to prevent access to any apparatus or operational land of the undertakers except with their consent:

- (6) Nothing in section 32 (Prohibition of other vehicles on hackney carriage stands) of this Act shall apply to any vehicle of the undertakers:

Provided that the undertakers shall not cause or permit any vehicle to wait on any hackney carriage stand appointed or deemed to have been appointed under section 31 (Stands for hackney carriages) of this Act except in a case of necessity:

- (7) (a) Any difference which may arise between the Corporation and the undertakers under this section shall be referred to and determined by a single arbitrator to be appointed by agreement between the parties or, in default of agreement, on the application of either party, after giving notice in writing to the other party by the President of the Institution of Civil Engineers;

- (b) In settling any difference under this section, the arbitrator shall have regard to any duty or obligation which the undertakers may be under in respect of any apparatus, and may, if he thinks fit, require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

74.—(1) The sections of the Act of 1936 mentioned in Part I of Schedule 2 to this Act shall have effect as if references therein to that Act included a reference to this Act.

Application
of general
provisions of
Act of 1936.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to Part III (Streets and buildings) and Part IV (Public health) of this Act.

PART IX
—cont.

(3) The section of the Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included a reference to section 15 (Attachment of traffic signs), section 16 (Securing of unoccupied houses under Act of 1957) and section 23 (Closure of insanitary food premises and stalls) of this Act.

Costs of
Act.

75. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

SCHEDULES

SCHEDULE 1

Section 11.

ENACTMENTS MENTIONED IN SECTION 11 (POWER TO REQUIRE INFORMATION AS TO OWNERSHIP OF PREMISES) OF THIS ACT

Land Drainage Act 1930.	1930 c. 44.
The Act of 1936.	
Land Drainage Act 1961.	1961 c. 48.
Parts IV and VI of the Public Health Act 1961.	1961 c. 64.
Housing Act 1961.	1961 c. 65.
Housing Act 1964.	1964 c. 56.

Section 74.

SCHEDULE 2

SECTIONS OF ACT OF 1936 APPLIED

PART I

SECTIONS APPLIED GENERALLY

Section	Márginal note
271	Interpretation of " provide ".
283	Notices to be in writing; forms of notices &c.
286	Proof of resolutions &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTIONS APPLIED TO PARTS III AND IV OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authorities to sell certain materials.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
293	Recovery of expenses &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint &c.
329	Saving for certain provisions of the Land Charges Act 1925.

1925 c. 22.

PART III

SECTION APPLIED TO SECTIONS 15, 16 AND 23 OF THIS ACT

Section	Marginal note
287	Power to enter premises.



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Derby Corporation Act 1972

CHAPTER xxxi

ARRANGEMENT OF SECTIONS

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PRELIMINARY

Section

1. Short and collective titles.
2. Division of Act into Parts.
3. Interpretation.

PART II

LANDS

4. Provision of substituted sites.
5. Compulsory acquisition of easements.
6. Covenants or restrictions affecting certain land.
7. Suspension of restrictive covenants.
8. Disposal of land.
9. Recovery of deposits under Lands Clauses Acts or
Compulsory Purchase Act 1965.
10. Entry on land for certain purposes.
11. Power to require information as to ownership of premises.

PART III**Section STREETS AND BUILDINGS**

12. Trees, grass verges and gardens.
13. Prohibition of vehicles on grass verges, etc.
14. Prohibition of parking of certain vehicles.
15. Attachment of traffic signs.
16. Securing of unoccupied houses under Act of 1957.
17. Expenses of executing demolition orders.

PART IV**PUBLIC HEALTH**

18. Extension of sections 72 and 75 of Act of 1936.
19. Refuse disposal.
20. Provision of bulk refuse containers by Corporation.
21. Maintenance of and access to bulk refuse containers.
22. Power to provide dustbins for trade refuse.
23. Closure of insanitary food premises and stalls.

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24. Provisions as to Arboretum and certain recreation grounds.
25. Parking places in parks, etc.
26. Extension of power to maintain burial grounds.
27. For protection of Commonwealth War Graves Commission.

PART VI**HACKNEY CARRIAGES, ETC.**

28. Interpretation of Part VI.
29. Provisions as to motor vehicles let for hire.
30. Fixing of fares for hackney carriages.
31. Stands for hackney carriages.
32. Prohibition of other vehicles on hackney carriage stands.
33. Recovery of charges for inspection.
34. Fitness of hackney carriages, etc.
35. Fee for driver's licence.

Section

- 36. Suspension and revocation of proprietor's licence.
- 37. Suspension and revocation of driver's licence.
- 38. Qualifications for drivers of hackney carriages, etc.
- 39. Power to require applicants to submit information.
- 40. Period of licences.
- 41. Transfer of hackney carriages, etc.
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Section

GENERAL

- 66. The appointed day.
- 67. Confirming authority for byelaws.
- 68. Local inquiries.
- 69. Liability of directors, etc.
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- 71. Appeals.
- 72. Protection of members and officers of Corporation from personal liability.
- 73. For protection of certain statutory undertakers.
- 74. Application of general provisions of Act of 1936.
- 75. Costs of Act.

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Schedule 2—Sections of Act of 1936 applied—

Part I—Sections applied generally.

Part II—Sections applied to Parts III and IV of this Act.

Part III—Section applied to sections 15, 16 and 23 of this Act.